Discourse Politics: Legal Research and Writing's Search for a Pedagogy of Its Own†

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I. INTRODUCTION

It has become trite to observe that Legal Research and Writing (LRW) is the least glamorous subject to teach in law school and that it is rarely embraced by those who are required to take it.[1] Rarely does a study of LRW proceed without a recitation of the widespread dissatisfaction with such programs. The belief persists that LRW still does not really belong in the company of Torts, Contracts, Criminal Law, or

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1. This tone is best captured by George Gopen who observed, "[t]he facts are that . . . a great majority of legal writing courses in our law schools are poorly taught, reluctantly taken, under-compensated on all parts, and therefore abject failures." George Gopen, *The State of Legal Writing: Res Ipsa Loquitur*, 86 MICH. L. REV. 333, 348 (1987).

Later in the article, Gopen, elaborates:

> In light of the importance to lawyers of controlling the language and the particular rhetorical difficulties that confront the legal profession, this absence of care and of competence in the teaching of writing at law schools is stunning. Absolutely everyone at these schools complains—the students of having to take a course undervalued and poorly taught, the instructors of not knowing how to engage their students and manage the task effectively and the administration of having to schedule, staff, and pay for the whole affair.

Id. at 356.

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even Civil Procedure. It lacks pedigree, has no grand theory, and is short on illustrious scholars. In a legal research and writing course, law students are not instructed in the analytic precision of doctrinal law, but rather something amorphously referred to as "skills."[2] In short, there is little "heroic" about simulated memos and pretend letters to pretend clients.[3]

Despite increased recognition in recent years,[4] what Macaulay and Manne declared thirty-five years ago in the *Journal of Legal Education* still strikes a chord today: "[L]egal writing has become the stepchild of the curriculum, unwanted, starved and neglected."[5] Teaching legal writing, inveighs Mary Ellen Gale, remains today the "art of the impossible."[6] Where is a "pedagogy" to be found in such pessimistic terrain?[7] More to the point, does LRW need a pedagogy at all? I believe strongly that it does, as I hope to demonstrate in this Article. Sketching the outlines of such a pedagogy, however, I have found more elusive.

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2. By skills, different people mean different things. However, in the context of legal writing and legal research, skills generally refer to the knowledge and expertise that go into the production of memoranda, briefs, and other legal documents. These skills are believed to be fungible from one area of law to another, and from one type of practice to another. This "how-to" approach is intended to give students a practical, "hands on" feel for the day-to-day activities of lawyering.

3. Philip C. Kissam, *Thinking (By Writing) About Legal Writing*, 40 VAND. L. REV. 135, 145-47 (1987). Kissam refers to oral exchanges as the "heroic acts" of law school, and writing, despite its importance as a mode of thinking and communicating, as relegated to the position of a second-class substitute in legal education. Furthermore, students increasingly come to law school having internalized a predominantly oral popular culture. *Id.*

4. For a more optimistic picture, see Jill J. Ramsfield, *Legal Writing in the Twenty-First Century: The First Images*, 1 LEGAL WRITING: J. LEGAL WRITING INST. 123 (1991).

5. Stewart Macaulay & Henry G. Manne, *A Low-Cost Legal Writing Program—The Wisconsin Experience*, 11 J. LEGAL EDUC. 387, 389 (1959).

6. *See* Mary Ellen Gale, *Legal Writing: The Impossible Takes a Little Longer*, 44 ALB. L. REV. 298, 299 (1980). The author asserted that:

> For many years, legal educators have assumed that teaching law students how to write law is the art of the impossible. The litany should be familiar to most professors, students, and lawyers: those who can learn to write well, will; those who can't, won't—regardless of how much or how little time, effort, and money is expended on teaching them. In an economy of scarce resources, the corollary is obvious to law school faculties and administrators: teach legal writing as little as possible, or not at all.

Id.

7. "Pedagogy" is defined as "the art, science, or profession of teaching . . . the study that deals with principles and methods in formal education . . . ." WEBSTER'S THIRD NEW INTERNATIONAL DICTIONARY 1663 (1986).

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I shall begin by exploring the primary dilemmas confronting LRW courses.[8] In the second section of the paper, I discuss the widely accepted (though perhaps misguided) view that legal writing and research courses are solely intended to transmit a series of technical skills.[9] In the third section, I outline an alternative to the current theory which takes the content of LRW courses to be both pedagogically and politically significant.[10] Here, I advance the view that legal research and writing ought to be exposing students to the promise and problems of legal discourse. However, in the context of LRW, where concerns about language and voice should matter most, they have tended not to matter at all. Finally, in the fourth and last section, I discuss my own experience teaching a Legal Research and Writing course at Columbia Law School.[11] The purpose of this final section is to flesh out a pedagogic purpose which LRW has, until now, sorely lacked, and to explore the ways in which the teaching of LRW can, in my view, transform legal education.

II. THE ENDURING DILEMMA OF LRW

Law school seems to be the only place where legal research and writing is not taken seriously. In the world of legal practice, whether academic, government, corporate or public interest, the importance of legal writing is rarely disparaged, and indeed is regularly cited as the most critical skill a law student should acquire.[12] As Allen Boyer remarked, "[g]rades in substantive courses help students obtain starting positions, but it is research and writing skills which make careers."[13]

Given the premium placed on legal writing and research, one would expect to find a lively to and fro in the debate on legal education regarding how best to teach it. However, in the thirty-five page bibliogra-

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8. *See infra* part II.
9. *See infra* part II.
10. *See infra* part III.
11. *See infra* part IV.
12. A recent survey of employers in the Chicago area revealed that of skills which employers expected law graduates to bring to the job (as opposed to those which the employers felt should be developed during practice), over 90% listed written communication and library legal research, and over 80% cited computer research. Anne Stein, *Job Hunting? Exude Confidence*, A.B.A. J., Nov. 1993, at 40. However, only 30% of employers expected students to have knowledge of substantive law, 28% expected knowledge of procedural law and less than 10% expected law graduates to know how to draft legal documents. *Id.*
13. Allen Boyer, *Legal Writing Programs Reviewed: Merits, Flaws, Costs and Essentials*, 62 CHI.-KENT L. REV. 23, 24 (1985).

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phy accompanying the 1992 *MacCrate Report on Legal Education and Professional Development*,[14] I was surprised not to find a single article dedicated to the issue of LRW. Moreover, the lone recommendation to squarely mention LRW hardly made the earth move: "Law schools should continue to emphasize the teaching of the skills of 'legal analysis and reasoning' and 'legal research,' as described in the Statement of Skills and Values, through a wide variety of instructional modes, including well-structured clinical programs."[15]

Certainly one factor which explains the dearth of attention to a pedagogy of LRW is that legal educators, especially those who see law school as primarily a vocational enterprise, are uncomfortable with talk of "pedagogy" itself—particularly in the context of "skills" based courses. Jay Fineman and Marc Feldman discuss this phenomenon in their article on the politics of pedagogy in law school:

> That most legal educators are anti-intellectual about their primary professional concern is neither surprising nor accidental. Questioning any one part of the belief structure underlying legal education brings into question the entire structure; pulling on a single thread can unravel the entire garment. Thus, the attitude of unreflexiveness is an important part of the defence of the status quo.[16]

Since its inception, LRW has struggled to justify its inclusion, and identify its proper place in the law school curriculum. The literature is rich with attempts at broad innovation, creative experimentation, and incremental tinkering with respect to LRW courses and programs.[17]

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14. ROBERT MACCRATE, LEGAL EDUCATION AND PROFESSIONAL DEVELOPMENT—AN EDUCATIONAL CONTINUUM: REPORT OF THE TASK FORCE ON LAW SCHOOLS AND THE PROFESSION: NARROWING THE GAP 341-76 (A.B.A., Chicago, IL., 1992) [hereinafter THE MACCRATE REPORT].

15. *Id.*, Recommendation C-12, at 331-32.

16. Jay Fineman & Marc Feldman, *Pedagogy and Politics*, 73 GEO. L.J. 875 (1985). However, as Neil Feigenson notes, "[t]o be sure, criticisms of legal education in general have always been commonplace. But at any given law school, the legal writing course is more likely than the doctrinal courses to be held in low esteem." Neil Feigenson, *Legal Writing Texts Today*, 41 J. LEGAL EDUC. 503 n.1 (1991).

17. A sampling of this literature includes the following:
George J. Alexander, *A Research and Writing Program for Small Schools*, 14 J. LEGAL EDUC. 377 (1962); Michael Botein, *Rewriting First Year Legal Writing Programs*, 30 J. LEGAL EDUC. 184 (1979); Davis F. Cavers, *The First Year Group Work Program at Harvard*, 3 J. LEGAL EDUC. 39 (1950); Robert N. Covington, *The Development of the Vanderbilt Legal Writing Program*, 16 J. LEGAL EDUC. 342 (1964); Barbara Cox & Mary Barnard Ray, *Getting Dorothy Out of Kansas: The Importance of an Advanced Component to Legal Writing Programs*, 40 J. LEGAL EDUC. 351 (1990); Wesley Gilmer, Jr., *Teaching Legal Research and Legal Writing in American Law Schools*, 25 J. LEGAL EDUC. 571 (1973); James Gordon III, *An Integrated First*

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Like a laundry detergent on the supermarket shelf which boldly announces every few months that it is "new and improved," LRW courses have been among the most reworked and revamped in the law school curriculum.[18] Still, the critics have remained skeptical. If anything, the prevailing view these days seems to be that the quality of legal writing is deteriorating markedly.[19] While those who have recently criticized legal

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Year Writing Program, 39 J. LEGAL EDUC. 609 (1989); Peter W. Gross, *California Western Law School's First-Year Course in Legal Skills*, 44 ALB. L. REV. 369 (1980); Harold Horowitz, *Legal Research and Writing at the University of Southern California—A Three Year Program*, 4 J. LEGAL EDUC. 95 (1951); Nancy Eastham Iacobucci, *Legal Research and Writing: A Proposed Programme*, 19 U. TORONTO L.J. 401 (1969); Harry Kalven, Jr., *Law School Training in Research and Exposition: The University of Chicago Program*, 1 J. LEGAL EDUC. 107 (1948); Donald Kepner, *The Rutgers Legal Methods Program*, 5 J. LEGAL EDUC. 99 (1952); Margit Livingston, *Legal Writing and Research at DePaul University: A Program in Transition*, 44 ALB. L. REV. 344 (1980); William B. Lockhart, *The Minnesota Program of Legal Education—The Four-Year Plan*, 3 J. LEGAL EDUC. 234 (1950); Stewart MaCaulay & Henry G. Manne, *A Low-Cost Legal Writing Program—The Wisconsin Experience*, 11 J. LEGAL EDUC. 387 (1959); Daniel R. Mandelker, *Legal Writing—The Drake Program*, 3 J. LEGAL EDUC. 583 (1951); C.A. Peairs, Jr., *Legal Bibliography: A Dual Problem*, 2 J. LEGAL EDUC. 61 (1949); Walter A. Rafalko, *The Legal Research and Writing Program: An Opportunity for Scientific Experimentation*, 3 PORTIA L.J. 1 (1967); William R. Roalfe, *Some Observations on Teaching Legal Bibliography and the Use of Law Books* 1 J. LEGAL EDUC. 361 (1949); Helene S. Shapo, *The Frontiers of Legal Writing: Challenges for Teaching Research*, 78 LAW. LIBR. J. 719 (1986); Ruth Fleet Thurman, *Blueprint for a Legal Research and Writing Course*, 31 J. LEGAL EDUC. 134 (1981); *Proceedings of the Fifty-Second Annual Meeting of the American Association of Law Libraries*, 52 LAW LIBR. J. 312, 350 (1959); David Lloyd, Comment, *A Student View of the Legal Research and Legal Bibliography Course at Utah and Elsewhere—A Proposed System*, 25 J. LEGAL EDUC. 553 (1973).

18. The first attempt to disseminate a "new and improved" course on legal writing came in 1923 at Columbia Law School (the course in various incarnations had surfaced around the turn of the century, though 1906 has been identified as the official inaugural date of the first course). *See* Marjorie Dick Rombauer, *First-Year Legal Research and Writing: Then and Now*, 25 J. LEGAL EDUC. 538 (1973). Frederick Hicks, a Professor and Law Librarian, suggested separating analytic argument and "brief making" from the first-year course on legal bibliography to focus the student's first exposure to the practice of law on the logistics of research. *See id.* (discussing FREDERICK HICKS, MATERIALS AND METHODS OF LEGAL RESEARCH (1923)).

The first "How to Find the Law" textbooks began appearing in the early thirties, further solidifying this effort. *See id.* However, by the 1940s the pendulum had swung back once again, and legal writing was added to the bibliography courses. *See id.* The first time instructors of this hybrid Legal Bibliography/LRW course appeared in the AALS's Directory of Teachers in Member Schools was 1947. *Id.* at 539-40.

19. Legal writing has regularly been the object of derision in the scholarly lit-

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research and writing courses bemoan the lack of energy, imagination and resources dedicated to legal writing and research, few critics see the problem as related to the absence of "pedagogy."[20] I argue that the state of teaching legal writing and research in our law schools is disturbing, but not because inadequate skills are being taught; rather, my concern is that adequate skills are the *only* thing being taught. As Philip Meyer puts it, "[w]e teach scales here, not improvisation."[21]

I believe Legal Research and Writing to be a course both about the nuts and bolts of legal writing *and* about the uses of legal language. As such, LRW ought to have a descriptive *and* a normative component to its pedagogy. It is this two-dimensionality that is missing. Nobody learns how to communicate in the abstract, or to communicate with others in a vacuum. Despite the implicit claims of many who teach LRW, there is no such thing as a generic or even generalized legal memo. All legal communication takes place within a dense web of social and structural relationships which legal writing necessarily reflects (and reproduces). To teach that how lawyers use language is technical and apolitical, that the same "rules" apply whether in a poverty clinic or a Wall Street firm, with the wealthy and indigent client, in my view, presents a dangerous and misleading vision of the legal world.

Moreover, whatever early glimpse students receive into that world most likely occurs in LRW. In her article entitled *Hidden Messages in the Required First-Year Law Curriculum*, Leslie Bender makes this point bluntly:

> The traditional curriculum fails to send student messages about the practice of law, as if practice were not important. It obfuscates the reality that law is about interactions among individuals in families, in neighborhoods, workplaces, schools, and communities; between groups of people, and between people and institutions, like corporations, churches and governments. In the traditional first-year required curriculum, students are rarely taught the practical skills they will need to practice law effectively (except perhaps legal research and writing of memos, briefs, and oral advocacy). It is as if those practical skills are

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erature, with aspersions cast at law schools whose responsibility it is to train legal writers. It is worth noting, this concern over writing ability is not limited to law schools but to the university generally. *See* Kissam, *supra* note 3, at 137 n.5 (citing Symposium, *Writing Across the Curriculum*, CURRENT ISSUES IN HIGHER EDUC. (1983-84)).

20. There are, of course, some notable exceptions. Recent examples include: Natalie A. Markman, *Bringing Journalism Pedagogy into the Legal Writing Class*, 43 J. LEGAL EDUC. 551 (1993); Philip Meyer, *"Fingers Pointing at the Moon": New Perspectives on Teaching Legal Writing and Analysis*, 25 CONN. L. REV. 777 (1993).

21. Meyer, *supra* note 20, at 791.

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> not fundamental to all lawyers and lawyering. They are seldom taught the skills of interpersonal communication (particularly how to work with people different from themselves, with clients, and support staff). . . . The traditional required curriculum does not tell them anything about what the practice of law is like . . . .[22]

Law students ought to leave LRW with a fungible "skill" that is applicable in diverse settings of legal practice, but the course itself is about far more than this—it is also a course about what lawyers do, who lawyers are, and how this shapes legal discourse.[23] The lack of any sophisticated understanding of this discourse is at least partly responsible for what Philip Kissam has referred to bleakly as "the failure of contemporary lawyers to engage in conceptual thinking."[24]

III. TECHNIQUE AND TELOS IN LEGAL RESEARCH AND WRITING EDUCATION

A. Practice Pedagogy

Legal Research and Writing courses tend not to fall under the scrutiny of scholars interested in legal pedagogy. Contracts, Torts, Property, Criminal Law and the other substantive courses attract far more attention. They are identified as involving "doctrinal" pedagogy.[25] LRW, by contrast, has been identified as involving "practice pedagogy," which Michael Swygert describes in the following terms:

> Teaching law also has come to include, especially in recent years and especially in America, a deliberate effort to create in the law school environment opportunities for students to be introduced to the skills of lawyering. This might be called "teaching lawyering." The goal is to assist students in developing a minimal proficiency in legal research and writing, appellate advocacy, legal drafting, client counselling, conciliation, negotiation, fact marshalling, and pretrial and trial practice. The pedagogic focus in lawyer training is on the *techniques* of competent lawyering. Consequently, skills training might be labeled the *prac-*

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22. Leslie Bender, *Hidden Messages in the Required First-year Law School Curriculum*, 40 CLEV. ST. L. REV. 387, 393 (1992).

23. By legal discourse I mean the particular form and use of language that conveys legal ideas in legal terminology for a legal audience or setting. However, this term also encompasses language which transmits particular messages about power, privilege, and public authority. For a brief overview of recent debates in legal discourse as it relates to legal education, see Julius G. Getman, *Voices*, 66 TEX. L. REV. 577 (1988). For a broader survey, see PETER GOODRICH, LEGAL DISCOURSE: STUDIES IN LINGUISTICS, RHETORIC AND LEGAL ANALYSIS (1987).

24. Kissam, *supra* note 3, at 136.

25. Michael I. Swygert, *Striving to Make Great Lawyers—Citizenship and Moral Responsibility: A Jurisprudence for Law Teaching*, 30 B.C. L. REV. 803, 805 (1989).

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tice pedagogy.[26]

Swygert notes that what he terms practice pedagogy and doctrinal pedagogy often conflict, forcing the law school into an unfortunate divide in between skills-oriented and substance-oriented camps.[27] Though this veers too far from the subject of this paper to explore in depth, I view this dichotomy as both counter-factual and corrosive to the mission of the law school. The sterile framing of the debate as whether law school ought to be turning out scholars or practitioners, and therefore whether "theory" has any place in "practice" related courses, misses the point that LRW necessarily inhabits both these realms.[28] The relationship between LRW and other "substantive" courses should be symbiotic, not supplemental: doctrinal courses depend on students knowing how to brief and synthesize a case, to research and write up a legal problem, just as LRW depends on students knowing how to identify the legal issues embedded in a judicial decision, to decide how much weight to give a precedent or piece of legislative history, and to analyze the doctrinal issues surrounding the area of law they are asked to research. Jack Achtenberg has likened this interdependence to the position occupied by "procedural" courses such as Civil and Criminal Procedure.[29]

Achtenberg has attempted to describe a discrete pedagogic area known as "legal communications" which would cover instruction on legal drafting, research, writing, advocacy and reasoning.[30] While this pedagogic approach includes the rhetorical devices by which arguments,

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26. *Id.* at 806.

27. *Id.*

28. What should be emphasized is that LRW is not a course on the *mechanics* of writing the English language. Students ought to be expected to come to law school able to write. Many, however, do not, even at the most elite universities. Remedial writing courses should therefore be made available to such students outside of their regular curriculum (this is done at Columbia on the basis of need with cooperation from the Faculty of Education).

29. *See* Jack Achtenberg, *Legal Writing and Research: The Neglected Orphan of the First Year*, 29 U. MIAMI L. REV. 218, 220 (1975). Mr. Achtenberg analogizes the exclusion of LRW with Civil Procedure on the following terms:

> It was long ago recognized that civil procedure is a necessary part of the law school. Procedure provides a vehicle for information transmittal, and also helps to determine the nature of this information. In a like manner, legal writing skills assure coherent communications and contribute to the precision needed for legal analysis.

Id.

30. *Id.* at 218-19 n.1.

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ideas, and norms are conveyed,[31] it does not inquire into why particular forms of communication are privileged over others. What is needed, in short, is both an exploration of communication—and one of power.

B. The Content of Pedagogy

In LRW, more than any other course on the first-year curriculum, content and pedagogy are inextricably bound together. LRW has no canon of classic scholarship, no doctrinal foundation, and most of the actual learning in the course takes place outside the classroom, in the library, with the students working alone or in groups. Gale observes that lectures in legal writing courses are of little use and that most of the content of the course therefore consists of assignments and their evaluation:

> Designing such assignments is no easy task, especially for first-year students who are not yet entirely ready to engage in the careful reasoning and analysis that good legal writing requires. . . . To entangle students fully in the most difficult, abstruse, and contradictory divergences of legal rule and principle is to teach confusion. What is wanted is an orderly progression of tasks which are simple enough to be mastered and complex enough to prepare students for the surprises and complications of law theory and practice.[32]

Thus, to the extent the course works, it succeeds in the students' assimilation of the library, and application of this research in writing assignments. Deciding what students ought to be looking for in the library, and on what topics and in what form they should be writing, thus become pedagogic issues. For example, to ask a student to find out what the law states regarding adverse impact discrimination on African Americans discloses different technical and political concerns than the same question dealing with Native Americans.

Proffering examples of how to write and how to research law is big business. Before plotting the course I was to teach at Columbia, I examined five or six legal research and writing textbooks (these in turn had been weeded from a host of original offerings by my predecessor). As Neil Feigenson emphasizes in his article *Legal Writing Texts Today*, a great deal turns on such choices:

> Any textbook writer must reconcile pedagogic vision with perceived market demands. But the author of a legal writing text has far more at stake. In no other first year subject is the value of the field so much judged by its teaching materials. The marginal status of the legal writing program at most law schools, paradoxically, renders its faculty all

31. *Id.* at 239-40.

32. Gale, *supra* note 6, at 324.

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> the more vulnerable to charges that they might educate better; hence, the legal writing community's greater felt need to justify its mission through its teaching materials.[33]

What these texts seem to assume is that the principal purpose of LRW is the "end product."[34] The texts typically are chock full of useful guides to using and citing case reports, encyclopedias, periodicals, and equally useful pointers on writing case briefs, inter-office memoranda and appellate briefs. They offer sensible examples to illustrate the material, and often include problem sets at the back for students to continue practicing on their own. Some may be better organized and more lively than others (which appear to be the main criteria on which Feighenson evaluates them), some focus more on research, others on writing, but none deviate from the basic structure. Based on what one can divine from these texts, the pedagogy of LRW amounts to walking students patiently through a cookbook whose recipes they soon commit to memory. What students research and write *about* is, on this view, secondary to the end product of "skills" acquired. These texts also (whether unwittingly so or not) establish what become powerful norms for first-year law students. The students internalize that they must adapt themselves to this new writing style, not that legal writing can or should be adapted to their own writing style.

The power of such norms is reinforced by the choice of subject-matter for legal writing assignments. In Ann E. Freeman's article, *Feminist Legal Method in Action: Challenging Racism, Sexism and Homophobia in Law School*,[35] she shows how the selection of writing as-

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33. Neal Feigenson, *Legal Writing Texts Today*, 41 J. LEGAL EDUC. 503 (1991) (reviewing RICHARD K. NEUMANN, JR., LEGAL REASONING AND LEGAL WRITING: STRUCTURE, STRATEGY, AND STYLE (1990); DIANA V. PRATT, LEGAL WRITING: A SYSTEMATIC APPROACH (1989); HELENE S. SHAPO, ET AL., WRITING AND ANALYSIS IN THE LAW (2d ed. 1991)).

34. *Id.* at 505. Feigenson concludes that:

> How well a program structures and arranges the material can by gauged *only* by reference to the *end product* - in this case, a good legal writer. Writing well in law practice, we can perhaps agree, requires more than a familiarity with legal texts and a mastery of basic reasoning and composition skills. Because lawyers write for a multitude of purposes and audiences and are constantly faced with new situations, a good legal writer must also comprehend how the various roles she occupies (e.g., interviewer, counselor, negotiator, advocate) shape her reasoning and writing, and must know how to adapt her experiences and knowledge to new roles and contexts.

Id. (emphasis added).

35. Ann E. Freeman, *Feminist Legal Method in Action: Challenging Racism, Sexism, and Homophobia in Law School*, 24 GA. L. REV. 849, 880 (1990).

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signments can define the pedagogic experience of LRW.[36] In her sex discrimination class at Rutgers Law School, Freeman offers the following example for discussion exercise:

> 2. Beers & Babes I
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> A first-year female law student receives a copy of the fact pattern for the first short memo in Legal Research and Writing. The fact pattern describes a routine car theft case and begins as follows: "A male student drives his car to a seedy neighborhood looking for fun on a Saturday night. He stops when he reads a sign over a club that says 'Beers and Babes.'" The phrase 'Beers and Babes' appears three times in the fact pattern, quite conversationally. The fact pattern suggests that entering this type of club is routine and socially acceptable. The subject's character is in no way harmed because of this activity. The female student is exposed to this type of mentality every day as she drives on Admiral Wilson Blvd. to go home—why should she be subjected to it in law school?
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> Can this fact pattern be seen as sexist?[37]

Few would question that pedagogic choices such as what sort of fact patterns and hypotheticals to utilize in the law school classroom do matter. Beyond this recognition, however, there is little consensus as to the criteria which should be adopted when selecting the content of a research or writing assignment. One may argue—as many critical legal studies theorists have—that students should be "exposed" to such fact patterns in class precisely because students have to confront such experiences outside.[38] According to this view, law school should allow and encourage students to confront issues of oppression and marginalization in the relative safety of a supportive classroom.[39] For the same reasons that LRW is one of the least scrutinized courses in the first-year curriculum, its content proves more resistant to change. In other words, the norms of LRW tend to simply be accepted as given. Unlike Contract Law, for example, which elicits competing visions of the market economy, LRW generates no such explicit politics. However, because LRW is seen as so remote from the political conflicts which often

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36. *Id.*

37. *Id.*

38. *See* Bill Ong Hing, *Raising Personal Identification Issues of Class, Race, Ethnicity, Gender, Sexual Orientation, Physical Disability and Age in Lawyering Courses*, 45 STAN. L. REV. 1807 (1993).

39. For an interesting exchange on the pros and cons of such an approach in the LRW setting, see the instructor's story, Richard F. Devlin, *Legal Education as Political Consciousness-Raising or Paving the Road to Hell*, 39 J. LEGAL EDUC. 213 (1989); and the response of a student who was part of the experiment, Didi Herman, *Legal Education, Feminism, and the "Well-Intentioned Man": A Response to Richard Devlin*, 40 J. LEGAL EDUC. 257 (1990).

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polarize and undermine legal education, I found that it proves to be a formidable laboratory for political exploration.[40]

I found most students mystified at the outside by what is "legal" about legal writing. The conventional answer to this question highlights the importance of authority and precedent, analytic detachment, complex reasoning structure, orientation toward problem-solving, incorporating the unique nature of legal research, and so forth. The "legal" in legal writing may also be problematized as a political question: important discursive choices go into these characteristics which ought to be made more explicit—a task for which LRW is ideally suited. Even the minutiae of Bluebook citations may admit of a politics if you look hard enough.[41]

In my view, the choice of content is critical to any pedagogy of LRW. This choice must be both sensitive to the damage that may be done in any law school class as a result of sexist, racist, classist, or homophobic instruction,[42] and recognize that it is not possible for an LRW class to be neutral. To research questions of law, to form and express arguments is to become, in a real sense, a part of this struggle, and to know that it is not *out there* but inside the law school as well. I think a pedagogy of LRW that emphasizes the politics of legal discourse must allow the students the opportunity to uncover—or discover—their own "voice." The answer, I think, lies in compelling students to clarify their convictions about law and their role in legal relationships through their legal writing.

The content of LRW involves not only questions that are ultimately political, but also questions which have an intrinsically moral dimension.[43] The assignments students receive in LRW typically ask them to determine both what the "right" argument is and, where relevant, whether the "right" argument in law is just. LRW is often the first place law students are called upon to grapple with their own sense of justice and its boundaries.[44] A law student's gut beliefs regarding the controversial

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40. Devlin, *supra* note 39, at 217, in terms borrowed awkwardly from Foucault, asserts that "[t]he LRW program—in spite of, indeed because of, its lowly position—provides an arena in which we can endeavour to discover and develop 'emancipatory trojan horses' within the citadel of contemporary legal education." *Id.*

41. Though clearly not to others. *See, e.g.*, Christopher W. Lane, *Bluebooks, Filled Milk and Infield Flys: Deconstruction, the Footnote, and a Uniform System of Citation*, 19 WM. MITCHELL L. REV. 161 (1993).

42. *See* Norman Brand, *Minority Writing Problems and Law School Writing Programs*, 26 J. LEGAL EDUC. 331 (1974).

43. *See, e.g.*, James R. Elkins, *Moral Discourse and Legalism in Legal Education*, 32 J. LEGAL EDUC. 11 (1982).

44. *See* Margaret Z. Johns, *Teaching Professional Responsibility in Legal Writing*,

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issues raised in doctrinal courses may have no similar outlet, especially in the first term of first year. From a pedagogic point of view, therefore, LRW should serve as a forum in which the student's convictions regarding the law can be challenged, affirmed and deepened. Gale made the following observation of her students as the LRW course progressed:

> They start individually to learn what the law is—not a fixed, immutable set of rules within rules, but an organic process. They find that law is prismatic, a different way of seeing. They discover that law is sometimes pluralistic and polycentric, that there may be many ways to view what once seemed a single, simple problem.[45]

While I share with Gale the belief that LRW has particular pedagogic priorities, this does not limit the possible scope of the course's subject-matter content. Put another way, the pedagogy of LRW is tied to the process of legal reasoning and legal discourse, whether this involves a property law setting or a privacy law setting is less important.

Many who have attempted to reformulate or revamp LRW programs have attempted fusing LRW with the substantive first-year courses on the theory that legal writing and research should not be segregated from the rest of first-year legal education. Perhaps the most ambitious such attempt was the "Contorts" experiment at Rutgers Law School.[46] This course featured a combination of Contracts, Torts and Legal Research and Writing. Despite this equal billing, it becomes clear in reading the designers' explanation of the course that the writing and research exercises were intended as merely supplemental to the substantive material taught in the course.[47] In this experiment, legal research and writing does not appear to be so much a pedagogic partner as simply a more proactive method for Torts and Contracts to be assimilated. Though such a course has significant potential to bring dense, amorphous courses such as contracts and torts alive in creative ways, I think it does less

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40 J. LEGAL EDUC. 501 (1990).

45. Gale, *supra* note 6, at 313.

46. *See* Fineman & Feldman, *supra* note 16, at 900-25.

47. For example, though billed as a joint venture between Contracts, Torts and LRW, the only reference to LRW in the description of the course appears to be in footnote 67, where after describing the scheduling of a week's worth of work, the authors note that one hour every week is set aside for LRW exercises. *Id.* at 902 n.67. In footnote 122, the breakdown of grading is provided which reflects each of the three subdivisions—interestingly, and perhaps tellingly, students in the course fared most poorly in the LRW segment: 28 people received a B or worse, compared to 12 people in the Contracts grade and 14 people in the Torts grade. *Id.* at 924 n.122.

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for the legal writing and research component. The chance to discuss issues of the sort important to the development of critical writing faculties seems, in this experiment, to be unduly subordinated to the needs and parameters of Contracts and Torts. To fetter LRW to doctrinal subjects in this fashion cripples its main strength, namely, the capacity to adapt varied forms of legal writing and research to suit varied contexts, and by so doing, to allow students to create their identities as lawyers.

An experiment with an integrated approach to first-year legal education with a more conscious focus on the legal writing and research component is the Criminal Law/Legal Writing and Research/Legislative Process course at Pace University Law School.[48] Michelle Simon, who taught the course, which is now mandatory for first-year students, describes its advantages over conventional LRW courses in the following terms:

> By teaching the substance of criminal law through the process of writing, the problems associated with traditional writing programs never materialize. There are various reasons for this phenomenon. First, students are taught how to write by a full-time "real" faculty member and the course is a year long, nine credit, graded course. These factors immediately communicate the importance of the subject matter to the student. Conversely, the student gets a sense of the professor's view of the importance and usefulness of legal writing and research. . . . Perhaps more importantly, however, teaching substance through writing communicates to the students that legal writing is a means towards synthesizing the law and a skill that is integral to the development of a proficient attorney. The fully integrated approach accomplishes this purpose by concurrently teaching students the law, teaching students the skills of analysis and organization, and providing students with an understanding of the connection between law school and the practice of law.[49]

While not wishing to take away from the dynamism of the Pace experiment, I think it suffers from the same basic flaw as the Rutgers program. Clearly, whenever feasible, all courses at law school should have writing assignments as part and parcel of the process of legal education. However, this does not diminish the importance of maintaining a course on legal research and writing itself. LRW, in other words, requires a pedagogy of its own.

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48. Michelle Simon, *Teaching Writing Through Substance: The Integration of Legal Writing With All Deliberate Speed*, 42 DEPAUL L. REV. 619 (1992).

49. *Id.* at 624-26 (footnotes omitted).

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IV. LEGAL DISCOURSE AND LRW

Legal Research and Writing is aimed at exposing and instructing law students in particular uses of language. Language, however, may obscure forms of subordination just as it may reveal them. While real and important disagreements exist on the nature of what has come to be known as "legal discourse," the idea that this is a central dimension of what law students learn in law school is, I think, uncontroversial. To a large extent, this contributes to the new identity that law students adopt, often awkwardly, in their first year of law school.[50] This process of assuming a new identity too often is accomplished at the expense of shedding the one with which students arrived at law school. It is this fascination with filling what is taken to be the void within the first-year law student's head (as captured by *The Paper Chase*'s Kingsfield's infamous mantra: "you come here with minds full of mush—and leave thinking like a lawyer")[51] that students and outsiders alike most readily identify with the folklore of law school. One observer coined the term "The Dark Night of the Soul" to describe how this process unfolds:

> Having learned the techniques of case and doctrinal criticism from their teachers, the students become skeptical at best, cynical at worst. This experience is deep and dispiriting, subjecting students to a "dark night of the soul." It causes many students to abandon preexisting beliefs as naive and idealistic. For their belief in objective law, students substitute a perception of law as hopelessly indeterminate, with a counterrule for every rule, where the uniform answer is "it depends"—with the critical factor as often the caprice of the judge as the justice of the claim. They now believe that law embodies not a common sense morality but an infinite set of conflicting "policy arguments" that reduces ethical discourse to a meaningless game in which lawyers' craft and guile, not a sense of justice, determine the outcome.[52]

I would argue Legal Research and Writing serves as a testing ground to resist the temptation of pedagogic cynicism. LRW is where students are asked to pretend they are in "real world" situations, and the results can be startling. The watchword "what does the Judge/Professor/Client want to hear?" may rapidly replace "What is the right/preferable/just answer and why." The goal for the instructor of LRW, in my view, is to inject a sense of meaning back into legal education. There are many different ways of lawyering. Not all lawyers

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50. *See, e.g.*, James R. Elkins, *The Quest for Meaning: Narrative Accounts of Legal Education*, 38 J. LEGAL EDUC. 577 (1988).

51. THE PAPER CHASE (20th Century Fox 1973); *see also* JOHN JAY OSBORN, JR., THE PAPER CHASE 17-21 (1971).

52. Fineman & Feldman, *supra* note 16, at 878.

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will need to know about or care to know about Commercial Law or Critical Race Theory, yet there is no form of practicing (or teaching law) that is exempt from the pervasiveness of the forms and uses of language—of communication, both narrowly and broadly construed. The purposive use of language is perhaps the only truly common denominator among all forms of legal practice. This is, after all, what makes lawyers powerful. Legal Research and Writing is the sole course in the first year of law school dedicated directly to introducing the nature of language and its uses in legal settings.

There are many who see the problem with legal writing (both how it is practiced and how it is taught) as simply one of vocabulary and grammar. The "plain English" movement, in particular, has striven to replace arcane "legalese"—replete with its antiquated Latin maxims and unintelligibly long sentences—with simple, accessible prose.[53] The application of this approach to the teaching of legal writing is clear. I believe that the plain English movement, while laudable in its intent, misses the point in its execution. The distinguishing feature of legal writing is not that it is done in "legalese" but that it embodies a particular claim to power and knowledge. The use of particular language results in the inclusion of some voices and the exclusion of others. This is the subtext of what law school really teaches. According to Philip Meyer, "[l]egal writing requires discipline and self-denial. You are internalizing a form of normative discourse that anticipates the structure that your teacher presumably desires on his examinations. Meanwhile, you try to learn to speak in a voice that is not your own."[54] Phelps is even more blunt on this score: "They [law students] fraudulently enter their new discourse community by adopting language not their own and by reneging in the struggle to find their own valid professional voices."[55]

This search for a form of legal communication that allows the law student to find a "voice" of his or her own is the focus of another approach which advocates something called, appropriately, the "human voice."[56] Elizabeth Hodges, a defender of the "human voice" approach,

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53. *See* Robert W. Benson, *The End of Legalese: The Game is Over*, 13 N.Y.U. REV. L. & SOC. CHANGE 519 (1984-85); Carl Felsenfeld, *The Plain English Movement in the United States*, 6 CAN. BUS. L.J. 408 (1981-82); George H. Hathaway, *An Overview of the Plain English Movement for Lawyers*, 62 MICH. B.J; Steven Stark, *Why Lawyers Can't Write*, 97 HARV. L. REV. 1389 (1984).

54. Meyer, *supra* note 20, at 10.

55. Teresa Godwin Phelps, *The New Legal Rhetoric*, 40 SW. L.J. 1089, 1102 (1986).

56. *See* Elizabeth Hodges, *Writing in a Different Voice*, 66 TEX. L. REV. 629,

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dismisses the plain English movement as believing that "simplistic, monosyllabic, two-line sentences" are somehow the answer to the complex conundrum of legal writing.[57] By contrast, she outlines the following broad mandate for the advocates of "human voice" legal writing:

> Can one unfreeze, so to speak, the professional voice and liberate its elusive, protean, "human" relative? I think so. But to do so would require a conscious awareness of how language works (to the extent that we can understand it), not so much as an abstract grammatical system but rather as an organic structure composed of different voices and systems of thought. We would need to open ourselves to the rich possibilities of language, sensitizing ourselves especially to the dynamic relationship between the individual voice or speech act and the community of language in which it is rooted. There is no pure individual voice, nor for that matter is there a pure professional voice. What we take to be a personal voice remains, regardless of its idiosyncrasies, a hybrid of the different voices we hear, assimilate, reject, adopt, and learn, both consciously and unconsciously, from birth on. When we write as lawyers (more often than when we speak), we tend to abuse both our personal and professional voices, largely out of misconceptions about the way language functions within both the self and society.[58]

What both the "plain english" movement and the "human voice" advocates seek to reclaim is the communicative wisdom of ordinary or everyday knowledge.[59] In other words, to the extent that legal writing, and legal discourse generally, is removed from the sphere of ordinary understanding, whether as a matter of vocabulary or "voice," legal communication acts as a form of oppression on those marginalized outside privileged circles of class, race and gender. The same can be said of traditional attempts to disassociate legal reasoning from the sphere of emotional conviction and personal experience.[60]

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629 (1988).

57. *Id.*

58. *Id.* at 630.

59. This has its correlative in the debate over different forms of rationality. Many critical observers favor valuing the "practical reason" of everyday experience ("that suggests the right thing (for us) to do") over the abstract, instrumental analytic form of rationality which has traditionally been venerated in law school. *See* Agnes Heller, *What Is and Is Not Practical Reason, in* UNIVERSALISM VS. COMMUNITARIANISM: CONTEMPORARY DEBATES IN ETHICS 163, 176 (DAVID RASMUSSEN ed., 1990); *see also,* THOMAS MCCARTHY, THE CRITICAL THEORY OF JURGEN HABERMAS 310-332 (1989).

60. *See* Angela P. Harris & Marjorie M. Shultz, *"A(nother) Critique of Pure Reason": Toward Civic Virtue in Legal Education,* 45 STAN. L. REV. 1773 (1993). As Harris and Shultz point out, the result of a classroom in which legal reason is detached from personal experience is a classroom that is both "boring and dangerous." *Id.* Furthermore, the authors stated that:

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Discourse itself is thus not neutral. Rather, there are ethical concerns built into the communicative act, predicated on such issues as whether parties to the discourse have equal understanding of the issues being argued and equal resources with which to advance their claim to the right answer, whether the person making assertions is doing so out of genuine conviction and not for an ulterior motive, whether the speakers all share a common language, and so forth.[61] It is not clear to me how easily such "discourse ethics" can be integrated into the pedagogy of legal writing and research; however, there ought to be room in LRW to touch upon the discursive politics to which legal writing and research necessarily give rise.

The answer, therefore, is not merely to structure legal communication more informally, but to rethink the discursive assumptions on which those communications are based.[62] In the words of the law professor in Richard Delgado's article *"Rodrigo's Fifth Chronicle,"*[63] "language and discourse—dialog of all sorts—prefigure the answers one reaches."[64] Later, Delgado's character Rodrigo emphasizes that "the terms and conventions of discourse reflect cultural power, meanings and understandings established long ago and that now seem natural, fair, neutral: the way things are."[65]

From this perspective, what is normally taught in LRW—the form

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> Alienation, experienced as a withdrawal of the self from the educational process, leads to the diminishment or extinction of intellectual curiosity and a transfer of energy elsewhere, into extra-curricular activities or part-time jobs. This alienation also prepares students for the more significant withdrawal of their selves from their professional identity as lawyers. Rather than seeking jobs that express their personal interests and commitments, too many are prepared to follow the crowd into the highest-paying or most prestigious job available. Not surprisingly, they feel like mere "mouthpieces" or tools of the system.

Id. at 1781.

61. *See* Robert Alexy, *A Theory of Practical Discourse*, *in* THE COMMUNICATIVE ETHICS CONTROVERSY (Seyla Benhabib et al. eds., 1990); Jurgen Habermas, *Morality and Ethical Life: Does Hegel's Critique of Kant Apply to Discourse Ethics?*, 83 NW. U. L. REV. 38 (1989).

62. *See* Robert Lipkin, *Kibbitzers, Fuzzies and Apes Without Tails: Pragmatism and the Art of Conversation in Legal Theory*, 66 TUL. L. REV. 69 (1991).

63. Richard Delgado, *Rodrigo's Fifth Chronicle: Civitas, Civil Wrongs, and the Politics of Denial*, 45 STAN. L. REV. 1581 (1993).

64. *Id.* at 1600.

65. *See id.* at 1600-01; *see also* Richard Delgado, *Shadowboxing: An Essay on Power*, 77 CORNELL L. REV. 813 (1992); Pierre Schlag, *Pre-Figuration and Evaluation*, 80 CAL. L. REV. 965 (1992).

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of a memo, the anatomy of the library, the "grammar of law"—historically has been taught in a one-dimensional fashion, conveying only a singular and status-quo oriented vision of legal communication. I believe strongly that LRW should provide students with the wherewithal to walk into a summer job, internship, fellowship, or entry level position of whatever calibre and character and to excel. However, if this is all I have done as an LRW instructor, and perhaps more importantly, if this is all I am asked to do, then LRW will continue its bottom-dwelling ways in the sea of legal academe.

What I advocate is a pedagogy of LRW capable of mandating the exploration of legal discourse. The content of legal writing traditionally has advantaged particular ways of reasoning and expressing argument and, at the same time, undermined others. The same may be said of the select "sources of law" to which first-year law students are sent to undertake their research. Students should be required both to research and write "like a lawyer" and also to see the social, political, and economic implications of this form of discourse, and to be aware of the alternatives.

V. SOME INSIGHTS FROM THE FRONT LINES

I teach Legal Research and Writing at Columbia University's School of Law.[66] At Columbia, LRW lasts only the first term of the first year of law school. Instruction is provided by six Associates in Law, who are also graduate students at the law school.[67] At first I found myself

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66. In 1993, the course was called Legal Research & Advocacy, though the decision was made to rename the course "Legal Research and Writing" for 1994, as oral advocacy is not part of the course's curriculum. Each Associate in Law is assigned approximately sixty students, divided into three sections of approximately twenty students each. The Associate meets with each section twice weekly for an hour for the duration of their introductory Legal Methods course (encompassing the first three weeks of first year) and once weekly for the rest of the term. Though these figures vary, the LRW course typically consists of thirteen one-hour classes. The rest of the course involves library and writing assignments.

67. There is a seventh Associate who is responsible for the Civil Law trained foreign LL.M. students and whose course is significantly different; *see* Julia E. Hanigsberg, *Swimming Lessons: An Orientation Course for Foreign Graduate Students*, 44 J. LEGAL EDUC. 588 (1994).

For a description of Columbia's Associate in Law method of staffing the Legal Research and Writing Program, see Boyer, *supra* note 13. Staffing issues traditionally have dominated in the literature on LRW. Some recent statistics from the MacCrate Report disclose the following: 36% of American law schools staff LRW courses with full-time, permanent faculty, 36% with part-time, permanent faculty, and 28% with full-time, non-permanent faculty. MacCrate Report, *supra* note 14, at 246. In 1986-87,

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groping as to how to approach the course. The pivotal moment for me in the course was when I ceased thinking of LRW as a course on *how to* write in the legal arena and began understanding it as a course *about* writing in the legal arena.

As the weeks went by, my students gradually attained as sound a working knowledge of the bluebook as I, and even the less gifted among them could search circles around me on Lexis or Westlaw before the term was out. I was required to assign a certain number of writing and research assignments, administer a citation and sheppardizing drill, and arrange for computer training (Lexis and Westlaw) for the students, but nothing was demanded of me beyond inculcating the relevant skills and commenting on the relevant assignments. No one required that I be interesting, or that the material for the course stir anyone's soul. I was provided with some samples of the assignments Associates had given in the past.

I recall, dimly, my own experiences as a first year student in LRW. I would describe the experience as innocuous at best. The instructor was well-meaning, sensible, and had a practical bent. She clearly cared about what she was teaching. Mercifully, attendance was not mandatory. I churned out a series of unmemorable memoranda, case analyses, and drills. They were all addressed, inoffensively "TO: A Senior Partner," and I think one involved a question of nuisance in which the protagonist was named "Larry Loud," or "Oliver Obnoxious?"[68] It took little from me intellectually and emotively, and gave as little back. I saw it principally as a hoop through which I was made to jump.

At Columbia, beyond setting out the number and type of assignments that the students were responsible for completing, the content of the course was left up to me. I was thus confronted with the daunting task of designing assignments which would encourage students to engage in the politics of discourse while allowing the students to pursue interesting topics.[69] Should I give the students the kind of research

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when women comprised only 15.9% of all tenure-track positions, they made up approximately 70% of all LRW positions in American law schools. *See* Elizabeth M. Schneider, *Task Force Reports on Women in the Courts: The Challenge for Legal Education*, 38 J. LEGAL EDUC. 87, 89 n.11 (1988).

68. Once again, Devlin is, perhaps appropriately, less charitable: "the ominous sounding 'memoranda of fact and law' . . . is classically hierarchial; we cast the legal neophyte in the role of an articling student in a large 'downtown' firm who dutifully and respectfully does the slog for her distinguished senior, usually 'a partner.' Devlin, *supra* note 39 at 216-17.

69. Richard Devlin, who happened to teach LRW at Osgoode Hall Law School, where I studied law, offered the following disparaging words on the low expectations

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assignments they would be likely to encounter in their summer jobs on Wall Street, where statistically the majority of them were likely to end up? I shared Gale's observation that:

> Any legal writing program should, at a minimum, provide students with a rigorous, individual intellectual exercise in the close analysis of legal materials, primary and secondary, and with a set of guided experiences in the major work of lawyering: communicating to others about the law in the language of the law.[70]

Elsewhere in her article, Gale refers to her LRW assignments as a "controlled adventure."[71] The instructor "controls" the adventure of simulating legal practice by providing some sense of direction and purpose to the analysis of cases and policies which the students are asked to undertake.[72] This struck me as a sensible premise from which to begin. However, I also wanted to take into consideration that legal writing is not only about communicating with others (clients, judges, adversaries), but also about how students come to know themselves. Effective legal writing instruction encourages students not only to explore the law but also, ideally, to articulate a notion of justice.[73]

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which typically attach to the instruction of LRW courses:

> The ideal instructor is the automaton, one who facilitates the smooth running of the program, one who determines that the students are technically competent to deal with substantive courses, and most important, one who ensures that nothing conflicts with the desires of the professors. "Know your place and your purpose" is the unspoken maxim for the LRW instructor.

Devlin, *supra* note 39, at 216.

70. Gale, *supra* note 6, at 300.

71. *Id.* at 313.

72. *Id.* at 313. Earlier, Gale elaborates that:

> Legal writing is characterized by complexities of form—approach, style and tone—as well as contents. . . . Controlled experience may be the only way to learn how to answer questions which require the exercise of informed discretion, of legal judgment.
>
> There are, for example, questions of distance, focus, perspective, and balance. In determining what to write in order to explain what the law is, or to argue what it should be . . . .

Id. at 303 (footnotes omitted).

73. I believe LRW is one of the forums most in need of actualizing what has been termed "the justice mission" of law school. *See* Symposium, *The Justice Mission of American Law Schools*, 40 CLEV. ST. L. REV. 277 (1992); *see also* Anthony Amsterdam, *Teaching About Justice Through Creative Strategies*, 40 CLEV. ST. L. REV. 277, 413 (1992).

Gale alludes to this process in the following passage:

> If writing is, as I think, one of the most important ways in which we communicate not only with others, but with ourselves, in the process of finding out what we think and what we know, then it is crucial that we retain—and

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One method that has been discussed to emphasize this often undervalued side of legal writing is "introspective writing."[74] In his recent article entitled *Writing Our Lives: Making Introspective Writing A Part Of Legal Education*,[75] James Elkins presents the following argument:

> Learning law, practicing it as a lawyer, or teaching it, depends more than we have previously recognized on what we think and imagine of ourselves as persons. The continual exposure to law and legal thinking affects our inner world of images, emotions, and fantasies. Law and legal thinking, the talking and listening we do as lawyers, shape our view of the world and become a world view.
>
> Introspective writing is one means by which we connect our knowledge and our work with our subjectivity, our sense of self. Introspective writing validates subjective experience, brings it into view, and gives it a place in professional life. Subjectivity surrounds our learning, our knowing, and our doing. Introspective writing brings the subjectivity that is always there back into conscious awareness. Writing is one way that we relate knowing to being as we unearth the stories we are living and the stories we hope to live.[76]

Part of the idea behind introspective writing is to empower students to find their own place in the legal world, and, more immediately, their own place in law school. Legal writing introduces students to the possibility that law can be a creative enterprise in which their own insights and capacities have a vital role. Gale emphasizes this point when she observes that "[o]ne crucial difference between legal writing and other law courses is, or ought to be, its placement of the student at the heart of the tangled mysteries she unravels."[77] Reading cases, the student is a "spectator" of the course materials. Writing on her own, making sense of a legal pattern with the raw material (cases, statutory rules, fact patterns) at hand, the student herself becomes the law's "magician." No course in law school is as well situated for the exploration of such introspective narratives as LRW.[78]

> teach our students—the ability to tell ourselves as much of the truth about what we know as possible. The demands of the adversary system should never be allowed to denigrate and falsify that essential communicative act. Only when a lawyer truly knows what she knows, can she then decide what it is proper—legally, ethically, and practically—to argue.

Gale, *supra* note 6, at 326.

74. A corollary to the journal keeping, or the introspective writing approach, is the broader approach of storytelling in legal education. *See* Symposium, *Pedagogy of Narrative: A Symposium*, 40 J. LEGAL EDUC. 1 (1990).

75. James R. Elkins, *Writing Our Lives: Making Introspective Writing A Part Of Legal Education*, 29 WILLAMETTE L. REV. 45 (1993).

76. *Id.* at 52.

77. Gale, *supra* note 6, at 315.

78. Indeed, an experiment with personal narratives of first year law school was

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Another concern I had to consider was the factor of time. There are many competing pressures on law students in the first term of their first year, both in the classroom and extra-curricular activities, in settling into a new university environment and for many, a new city as well. There are academic pressures, social pressures, and financial pressures, and the strain this places on the majority of students is easy to see. From the student's perspective, LRW often takes a back seat to the other courses in the first-year curriculum.[79] Time constraints become all the more potentially dangerous when the research assignments are open-ended, in other words, where there is no limit placed on what sources the students can consult. In my research assignments, in order to evaluate how well students can integrate varied sources, students are required to draw from case law, statutory law and scholarly commentaries (either annotated cases or law review articles). The possibility of a gifted and engaged student simply becoming swamped is a real one, and therefore time-management skills are as important to emphasize as library skills in helping students prepare for a major research memorandum. Deciding how much to research, when to stop writing, and the juggling of other important academic and personal commitments are necessarily integral aspects of any LRW assignment of this nature.

So, with these concerns in mind, I decided on three principles to guide my selection of topics for the major research and writing assignment—the culmination of a term of case briefs, research problems and short essays: 1) the topic should be an area of the law about which students already have some opinion (whether from media or other popular exposure); 2) the topic should be an unsettled area of law where it is not possible to "find" an answer, but where, instead, students must decide which of the available answers they are persuaded by and why; and 3) the topic should relate in some way to the role law serves in delineating relationships of power, privilege and public authority in society.

I believe it is crucial to begin with research topics to which most students have some exposure. I chose sexual harassment, domestic violence, and discrimination on the basis of the HIV virus as examples

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undertaken by one of my predecessors at Columbia, who reports that she "made room" for a "forum in which students could share their stories and reactions" to a series of critical readings about legal education. Shauna Van Praagh, *Stories in Law School: An Essay on Language, Participation, and the Power of Legal Education*, 2 COLUM. J. GENDER & L., 111, 128 (1992).

79. *See* Douglas Laycock, *Why the First-Year Legal-Writing Course Cannot Do Much About Bad Legal Writing*, 1 SCRIBES J. LEGAL WRITING 83 (1990).

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which seemed to meet this criterion. The point here is to highlight the valuable insights, instincts, and in some cases, experience which students bring with them to law school. My goal was to counteract the message from other aspects of first-year legal education that their previous studies and lives have no relevance or importance in law school. The danger here, of course, is that students may be asked to write against their own personal knowledge and experience, like Patricia Williams's example of black and Jewish students asked on their constitutional law exam to defend under the First Amendment a piece of writing filled with racist and anti-semetic remarks.[80] I think the possibility of submerging identity and experience in this fashion can be more easily avoided in the context of LRW research assignments than constitutional law exams. In the research assignment, it is both useful and appropriate, irrespective of what perspective the students are asked to present their argument from (i.e., the side of the litigation they favor or the side they oppose), to ask students also to voice *their* opinions regarding the litigation. In other words, students are exposed to the experience of writing from a perspective they may not agree with (a common enough event in any form of legal practice) but also provided with a forum for expressing the frustration, confusion, and "cognitive dissonance" which may result. Additionally, law students should have an extended opportunity to discuss the research and writing process with the instructor and with each other. This flows from the equally delicate process of receiving the instructor's comments on the assignment, and the analyses and opinions expressed therein. There is no way, of course, to guarantee against someone feeling offended by the content of a research assignment or the comments which may accompany its evaluation. However, if a high value is placed on open and critical exchanges, and room is made for both mainstream and outsider viewpoints, then the risk of such negative reactions is significantly minimized.[81]

The second criterion for the research assignment was that the law in each of the three questions I selected turned on an area of the issues that is essentially unsettled. Where possible, I tried through the fact pattern to provide credible reasons for the case to be argued from either

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80. PATRICIA J. WILLIAMS, THE ALCHEMY OF RACE AND RIGHTS 84 (1991).

81. Another structural feature of the LRW course at Columbia which allows for any frustrations or unease with research or writing issues to be aired is the one-on-one conference the instructor has with every student after the memo has been reviewed. The purpose of these 45 minute meetings is to amplify the written comments on the assignments, and to allow each student to share her or his experience with the work, the course, and law school generally.

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side. Unlike the students' previous written assignments, where two or more arguments were possible but only one had been accepted as authoritative, here I wanted students to choose which of the two more or less equally persuasive arguments they found most compelling, and to justify why. The goal of this guiding principle is to stimulate critical writing faculties.[82]

Finally, because legal discourse is political, I felt it was necessary that the research topics touch upon issues which exceed the boundaries of the litigation. For example, sexual harassment, domestic violence, and AIDS are not problems that isolated acts of litigation can "fix." Difficult questions of public policy, social justice, and personal morality come into play in ways which are unsuited to the legal arena and to conventional legal reasoning.[83]

The three final memo research topics (one for each section) I settled on were the following:[84] a) a female high school student in Minnesota is "rated" by male fellow students on her way to her locker and ends

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82. Philip Kissam offers the following thoughts on the "critical writing process":

> In Richard Marius's arresting phrase, the critical writing process allows a writer's mind to function like a "radar scope that plays continually over one's own text" in ways that can force the writer to confront and control hard issues more directly and more creatively than is possible with non-written thought. This special perspective thus can enhance the creation of new thoughts, the articulation of complex thoughts, and the recognition of the subtleties, nuances, and qualifications that are so important to the art of lawyering. In sum, the critical dimension of the writing process encourages a writer, by herself and possibly with the assistance of others, to enter into a sustained and serious dialogue about the subject under consideration. This dialogue can generate a much fuller and richer consideration of contradictory evidence, counterarguments, and the complex elements of a subject than is ever possible in oral communications alone or in a strictly instrumental process of legal writing.

Kissam, *supra* note 3, at 140-41 (footnotes omitted).

83. This point is emphasized by Gale, *supra* note 6, at 311:

> Properly taught, legal writing is not a return to bar-anticipation courses. It is not a course in basic research techniques or in basic examination writing techniques. Still less is it a course in grammar, syntax, punctuation, and spelling—despite the need of some law students for a remedial English course. It is a necessary supplement to the case method of teaching law and to interdisciplinary teaching about the policies behind the law. A course in legal writing has a special place in the curriculum of a law school which attempts to teach *the relationships between social or economic policy and law.*

Id. (emphasis added).

84. The three questions are set out in full in the Appendix.

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up leaving the school as a result of what she experiences as sexual harassment and enrolls in a private school. The question is whether she can recover damages from the school board, which was aware of the behavior and did not act to stop it; b) a battered wife in Oregon calls for the police twice in one evening. The first time she refuses to press charges; the second time the police take their time arriving. The question is whether she can recover damages from the city for the failure of the police to respond; c) a New York woman who has the HIV virus is denied dental treatment from a dental hospital due to the risk she is deemed to pose to health care workers and is referred to a clinic in another borough. Can the woman bring suit against the dental hospital? Each of these fact patterns tell a story with relatively easy narratives to access. To see all the legal and policy issues which are implicated in these stories is less straightforward. Even more problematic is the ability to "abstract" those legal and policy issues from the story and discuss their application generally, or in relation to analogous cases. In a nutshell, this is what I take to be the most complex moment of legal analysis—to get from the story to the legal substance without losing sight of the story.[85]

The combination of the three principles I had set out for the assignment facilitated both the assimilation and critique of legal discourse. Of course, this is only a first step down a difficult road, but I found the results encouraging. The engagement of the students in the research problems showed clearly through their writing and avid discussions on the topic of the fact patterns in hallways and in my office during individual conferences. This process did not always lead to excellent papers. For example, some read more like manifestos than memos, but virtually all reflected a working knowledge of legal discourse—and most displayed a healthy apprehension with respect to it. However, as beneficial

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85. Philip Meyer identifies the problem in these terms:

> [M]any first-year students prefer reading torts cases to reading any other type of case. They believe they can understand these cases because they literally can see the stories. Torts problems are often used in first-year writing and analysis courses because students are more comfortable organizing events along a visual/imagistic narrative axis. However, because they lack the necessary internalized schema, students often have great difficulty extracting complex theoretical principles (legal rules) from these cases or analogizing (comparing) cases. Many students have not developed the textual and interpretive skills necessary to identify, restate, order, and apply legal rules.
>
> . . . They cannot "find" the issue because they literally cannot see it . . . .

Meyer, *supra* note 20, at 781-82.

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as I found the principles set out above in the selection of LRW assignments, just as important to the success of the course were more intangible factors, such as the relationship between myself and the students, which differed between sections. While the factors which produce success or failure in this relationship lie outside the scope of this paper, it is a dynamic which also must be taken into consideration in the search for LRW's pedagogy.

VI. CONCLUSION

Unlike most articles on Legal Research and Writing programs, I have no blueprint or plan of action to rework the LRW curriculum. The transformation I advocate, and which in small measures I attempted to institute at Columbia, involves no additional resources or administrative overhaul. Rather, it concerns rethinking the type of assignments given, and designing these assignments with a pedagogy of LRW in mind. As I have tried to demonstrate in this Article, I believe LRW to be about more than merely learning the structure and strategy of legal communications; it should also challenge first-year law students to explore the politics of legal discourse. One way to accomplish this is through the selection of research and writing exercises, but other avenues which highlight the normative facets of LRW exist as well (i.e., classroom simulations). In conclusion, given a pedagogy of its own, LRW promises to be a valued and stimulating part of the first-year curriculum.

APPENDIX

Students were required to write an eight to ten page essay on one of the three topics below. They were permitted to work on the research in groups but had to write up their answers independently and individually. The following three fact patterns were given to the students; no limit was placed on the sources they could consult, though a leading, recent law review article was provided with each question to help them to get started.

1. This case concerns a young woman named Samina Lawrence who is a Junior at George Washington High in St. Paul, Minnesota. Though a star student, and active on many clubs and organizations, each day she dreads going to school. In order to reach her locker, she must pass through a hallway where a group of guys hang out "rating" all the young women who walk by. Sometimes they hold up sheets of paper with each part of her body "scored"; other times they just laugh and read them out loud. Samina feels degraded each time she has to go to her locker, but mostly she just walks as fast as she can and tries to tune them out. What made Samina really sick was when she overheard

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a few of her classmates actually bragging about their "score," saying it was just the guys' way of flirting. One day she noticed a group of her girlfriends on the other side of the hallway rating the guys who passed. Samina and some others who felt the same started coming late to school and eating lunch outside in order to avoid the guys. One day, she arrived at her locker to find her "score" posted, along with an unsigned note which read "looking forward to seeing more of you in gym." After that incident, Samina decided to skip gym class. Her grades slipped and she quit most of the clubs.

If anything, the situation grew worse. Samina complained to a female teacher who seemed sympathetic, and told her about the sexual harassment policy that the Independent School District of St. Paul, Minnesota had issued, and which was posted in the school. It reads as follows:

> Sexual harassment may include but is not limited to a) verbal, written/graphic harassment or abuse; b) subtle pressure for sexual activity; c) inappropriate patting or pinching; d) intentional brushing against the individual's body; e) demanding sexual favors accompanied by implied or overt threats concerning an individual's employment or educational status; and f) any unwelcome touching of a sexual nature.

The teacher promised she would talk to the guys if she caught them, but warned her "jerks will always find ways of being jerks." In addition, after a staff meeting, the teacher mentioned the incident in passing to the Principal, who politely responded, "I'll look into it, but I can't stop boys from being boys, and we can't afford to police the hallways all day."

Samina, depressed and exasperated, announced to her parents one day that she wanted to drop out. After some cajoling, she finally explained to them the reason why. Her parents were infuriated. They showed up the next day at the Principal's office demanding that some official action be taken. The Principal told the Lawrences that, while he was aware of the problem, no complaint had formally been filed, so there was nothing that could be done. The Principal added, "These things are better handled quietly, and besides, the boys do have some rights of their own we must consider." Samina's parents decided to remove her from George Washington High and enroll her in a single sex private high school. They have come to you in order to determine if they have grounds to sue the school board. The remedy they seek is for the school to pay the costs of sending Samina to the private school. What is the most effective argument the Lawrences could raise in such a suit? Based on your analysis of the law, what is the likelihood of the remedy sought being awarded? Finally, in your view, how should this litigation be resolved?

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2. On a cold evening in February this year, Frances Millbank called the Portland police. Her husband Oscar was hitting her. It was not the first time that the Portland police had sent a car to the Millbank house on the outskirts of town. Invariably though, Frances refused to press charges or testify against her husband. It had become a sad and predictable pattern. In the old days, the police would have just sent someone out "when it seemed real bad," but since Oregon adopted a mandatory response policy to calls of domestic violence, the dispatcher is obligated to investigate every complaint. Some of the officers had complained, saying their job was to catch criminals, not mediate family squabbles. But still, they complied.

Officers Heald and Mackay arrived on the scene to find Frances shaken but composed. Her left eye was swelling up fast and she was holding a wet towel over it. "Sorry to waste your time fellas," Oscar said, slurring his words. "We were just having a little discussion. You know how it is." The officers turned to Frances. "I'm sorry as well," she said, quietly, "It's alright now." The officers sighed in resignation. "He looks like he could use a pot of black coffee," suggested Heald as the officers departed.

Later that evening the officers had just finished investigating a robbery and had stopped for a donut-and-coffee break when the dispatcher called with another complaint from Frances Millbank. "She's afraid again. Wants us to send someone out. You boys are still in the neighborhood—you better take a look." The officers acknowledged the call. They finished their donut and coffee unhurriedly, and headed back to the Millbanks. They found the front door wide open, furniture overturned and Oscar lying on the living room rug, snoring. There was no sign of Frances. The officers called for backup, searched the area, and finally discovered Frances in her nightgown, passed out on the side of a rural highway a mile or two from the house. She was taken to the hospital and treated for exposure and serious contusions to her face and body. "I waited twenty-five minutes and no one came," she told the police. "No one came to help me."

Frances was taken to a battered women's shelter where she has been recovering. With the help of newfound friends and a supportive counselor, Frances was finally able to testify against her husband. He was promptly arrested, tried, convicted and is now in prison. Frances has also sued for divorce. She still feels a lingering resentment, however, towards the police. She recalled the terror of waiting for them to come while Oscar kept beating her until finally, in desperation, she fled the house. "They should have protected me," she complained to her friends. Her counselor referred her to a lawyer who works with the shelter, and

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Frances was informed there was a chance she could sue the police for failing to come to her aid. She has decided to go forward to set an example, and is asking for $100,000 in damages which she has pledged to donate to the shelter in order to help other women in her position.

You have been retained by the City. After briefly canvassing the possible avenues of argument, what will be the most effective legal argument through which Frances can establish the liability of the police in these circumstances? Based on your analysis of the law in this area, do you think a court would likely agree the police were liable and grant her the remedy she seeks? Finally, in your view, considering the issue of domestic violence as a whole, what is the best means for the legal system to deal with police conduct and discretion in this context?

3. Sandy Fisher is HIV positive and has known this for the past two years. She is receiving treatment, responding well to the drug program, and has yet to display any troubling symptoms—though she knows deep down that it is only a matter of time. Nonetheless, she is determined to live her life fully while she can. She is a painter and finds the medium useful to express her anxiety. Living in the Village, she has a good support network of HIV positive and negative friends.

One day last week, while drinking some hot chocolate and mulling over one of her many unfinished canvasses, she felt a familiar pain in her mouth—her inflamed gums. She knew she could not put the root canal off any longer. She had finally sold enough of her work to afford the procedure. She called up the Sunnybrook Dental Hospital just outside of New York City, because it was recommended to her by a number of people as the best in the country.

She called up the dental hospital, made an appointment, and arrived a few days later. When filling out the standard information form, she noted that she was HIV positive and taking medication. She had already checked with her physician who confirmed that the root canal would not affect her condition in any way. The nurse eyed the form carefully when Sandy handed it in and nervously asked her to wait right there for a minute. When she returned, it was not with a dentist or hygienist, but with a short, bald man in a suit. "I'm sorry," he stammered, "we don't do root canals on people with AIDS . . . there is too much of a risk . . . of infection, I mean. Lots of blood in the mouth, you know. It's happened before. . . . One hears about these things. But we sympathize with your tragedy, but we have the safety of our staff to consider. . . . We have the name of a perfectly respectable dentist in the Bronx who will see anyone. . . . I mean who is willing to take a chance on . . . what I mean to say is that he would be happy to perform the procedure." He handed her the card furtively, and Sandy left.

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Sandy felt like a rat carrying a plague, but it was not the first time she had experienced such a sensation. She was not quite used to it yet. She explained the feeling to a little group of other HIV positive people the next day. They nodded in recognition but also informed her that what the dental hospital did was not right. "You can't be discriminated against because you have a disease—it shouldn't be that way—not in America," one man stated plainly. Sandy was moved and angry. The next day she went to see a lawyer who seemed encouraging. "I'll need to do some research on this," her lawyer said, and Sandy could hear the cash register ringing. "But if you're willing, I can farm most of it out to a law student to save billing charges." Sandy quickly agreed.

The lawyer has contacted you. She wants to know what statutes might cover Sandy's situation—especially the new Americans with Disabilities Act. She also wants to know how courts have viewed these sort of cases in the past. Does Sandy have a good chance of succeeding in your view? Finally, she would like you to discuss whether, after evaluating all of the materials, you feel there *ought to be* a duty to treat in this situation.

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